

**DISPOSITION OF CHARGES**

PD 468-142A (Rev. 1-06)

CASE NO.

2021-23487

BOOK & PAGE NO.

Page 1 of 4

PERSONNEL ORDER NO.

SPECIFICATIONS AGAINST
RANK/SURNAME

FIRST

M.I.

Police Officer Stalikas,

James

COMMAND

Warrant Section

SHIELD NO.

18382

TAX REGISTRY NO.

959268

DATE APPOINTED

July 8, 2015

RANK/NAME OF COMPLAINANT

Deputy Chief Prosecutor Suzanne D. O'Hare

COMMAND

CCRB - Administrative Prosecution Unit

DATE OF CHARGES

June 15, 2021

DATE TRIAL COMMENCED

August 19, 2022

DATE TRIAL CONCLUDED

September 19, 2022

TRIAL COMMISSIONER

Honorable Paul M. Gamble

SPECIFICATIONS	DISPOSITION	RECOMMENDED PENALTY PLEA ☐ TRIAL ☒
1. Police Officer James Stalikas, on or about August 14, 2019, at approximately 0100 hours, while assigned to the 47th Precinct and on duty, in the vicinity of § 87(2)(b) Bronx County, was discourteous, in that he spoke discourteously to § 87(2)(b) without police necessity, by stating in sum and substance, "I know you are fucking playing stupid."	GUILTY	It is recommended that Respondent forfeit five (5) vacation days for each specification, to run concurrently with each other.
2. Police Officer James Stalikas, on or about August 14, 2019, at approximately 0100 hours, while assigned to the 47th Precinct and on duty, in the vicinity of § 87(2)(b) Bronx County, was discourteous, in that he spoke discourteously to § 87(2)(b), without police necessity, by stating in sum and substance, "I know you know about the credit card skimming and all that shit."	NOT GUILTY	

Reviewed by Deputy Commissioner of Trials

R. Maldonado
DEPUTY COMMISSIONER11/15/22
DATE

Police Commissioner's Approval:

☒ Approved☐ Disapproved☐ Other Action (Describe)*Paul M. Gamble*
POLICE COMMISSIONER4/17/23
DATE

**DISPOSITION OF CHARGES**

PD 468-142A (Rev. 1-05)

CASE NO.

2021-23487

BOOK & PAGE NO.

Page 2 of 4

PERSONNEL ORDER NO.

SPECIFICATIONS AGAINST

RANK/SURNAME

FIRST

M.I.

Police Officer Stalikas,

James

COMMAND

Warrant Section

SHIELD NO.

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4. Police Officer James Stalikas, on or about August 14, 2019, at approximately 0100 hours, while assigned to the 47th Precinct and on duty, in the vicinity of § 87(2)(b), Bronx County, was discourteous, in that he spoke discourteously to § 87(2)(b) without police necessity, by stating in sum and substance, "He is just a fool. He sounds so stupid."	GUILTY		

Reviewed by Deputy Commissioner of Trials

R. Maldonado
DEPUTY COMMISSIONER

11/15/22
DATE

Police Commissioner's Approval:

☒ Approved☐ Disapproved☐ Other Action (Describe)

G. J. [Signature]
POLICE COMMISSIONER

4/18/23
DATE

**DISPOSITION OF CHARGES**

PD 46B-142A (Rev. 1-08)

CASE NO.

2021-23487

BOOK & PAGE NO.

Page 3 of 4

PERSONNEL ORDER NO.

SPECIFICATIONS AGAINST
RANK/SURNAME

FIRST

M.I.

Police Officer Stalikas,

James

COMMAND

Warrant Section

SHIELD NO.
18382

TAX REGISTRY NO.

959268

DATE APPOINTED

July 8, 2015

RANK/NAME OF COMPLAINANT

Deputy Chief Prosecutor Suzanne D. O'Hare

COMMAND

CCRB -Administrative Prosecution Unit

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6. Police Officer James Stalikas, on or about August 14, 2019, at approximately 0100 hours, while assigned to the 47th Precinct and on duty, in the vicinity of § 87(2)(b), Bronx County, was discourteous, in that he spoke discourteously to § 87(2)(b) without police necessity, by stating in sum and substance, "Fucking watch your mouth."	NOT GUILTY	

Reviewed by Deputy Commissioner of Trials

R. Maldonado
DEPUTY COMMISSIONER

11/15/22
DATE

Police Commissioner's Approval:

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

G. Hall
POLICE COMMISSIONER

4/19/23
DATE

**DISPOSITION OF CHARGES**

PD 468-142A (Rev. 1-06)

CASE NO.
2021-23487
BOOK & PAGE NO.
Page 4 of 4
PERSONNEL ORDER NO.

SPECIFICATIONS AGAINST RANK/SURNAME		FIRST	M.I.	COMMAND
Police Officer Stalikas,		James		Warrant Section
SHIELD NO.	TAX REGISTRY NO.		DATE APPOINTED	
18382	959268		July 8, 2015	
RANK/NAME OF COMPLAINANT				COMMAND
Deputy Chief Prosecutor Suzanne D. O'Hare				CCRB -Administrative Prosecution Unit
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
June 15, 2021		August 19, 2022		September 19, 2022
TRIAL COMMISSIONER				
Honorable Paul M. Gamble				

SPECIFICATIONS	DISPOSITION	RECOMMENDED PENALTY	
		PLEA ☐	TRIAL ☒
7. Police Officer James Stalikas, on or about August 14, 2019, at approximately 0100 hours, while assigned to the 47th Precinct and on duty, in the vicinity of § 87(2)(b), Bronx County, wrongfully used force, in that he used a chokehold against § 87(2)(b).	NOT GUILTY	See Page 1.	
8. Police Officer James Stalikas, on or about August 14, 2019, at approximately 0100 hours, while assigned to the 47th Precinct and on duty, in the vicinity of § 87(2)(b), Bronx County, wrongfully used force, in that he used physical force against § 87(2)(b) by grasping both his arms at the wrist and pushing them up towards his head, without police necessity.	NOT GUILTY		

Reviewed by Deputy Commissioner of Trials

R. Maldonado
DEPUTY COMMISSIONER

11/15/22
DATE

Police Commissioner's Approval:

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

G. J. [Signature]
POLICE COMMISSIONER

4/17/23
DATE



POLICE DEPARTMENT

November 15, 2022

-----X

In the Matter of the Charges and Specifications	:	Case No.
- against -	:	2021-23487
Police Officer James Stalikas	:	
Tax Registry No. 959268	:	
Warrant Section	:	

-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Paul M. Gamble
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU: Claudia Avin, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent: Michael Martinez, Esq.
Worth, Longworth & London, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE KEECHANT L. SEWELL
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

COURTESY • PROFESSIONALISM • RESPECT

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CHARGES AND SPECIFICATIONS

1. Police Officer James Stalikas, on or about August 14, 2019, at approximately 0100 hours, while assigned to the 47th Precinct and on duty, in the vicinity of § 87(2)(b), Bronx County, was discourteous, in that he spoke discourteously to § 87(2)(b), without police necessity, by stating in sum and substance, "I know you are fucking playing stupid."

P.G. 203-09, Page 1, Paragraph 2

PUBLIC CONTACT –
GENERAL

2. Police Officer James Stalikas, on or about August 14, 2019, at approximately 0100 hours, while assigned to the 47th Precinct and on duty, in the vicinity of § 87(2)(b), Bronx County, was discourteous, in that he spoke discourteously to § 87(2)(b), without police necessity, by stating in sum and substance, "I know you know about the credit card skimming and all that shit."

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PUBLIC CONTACT –
GENERAL

3. Police Officer James Stalikas, on or about August 14, 2019, at approximately 0100 hours, while assigned to the 47th Precinct and on duty, in the vicinity of § 87(2)(b), Bronx County, was discourteous, in that he spoke discourteously to § 87(2)(b), without police necessity, by calling § 87(2)(b) "a fucking idiot."

P.G. 203-09, Page 1, Paragraph 2

PUBLIC CONTACT –
GENERAL

4. Police Officer James Stalikas, on or about August 14, 2019, at approximately 0100 hours, while assigned to the 47th Precinct and on duty, in the vicinity of § 87(2)(b), Bronx County, was discourteous, in that he spoke discourteously to § 87(2)(b), without police necessity, by stating in sum and substance, "He is just a fool. He sounds so stupid."

P.G. 203-09, Page 1, Paragraph 2

PUBLIC CONTACT –
GENERAL

5. Police Officer James Stalikas, on or about August 14, 2019, at approximately 0100 hours, while assigned to the 47th Precinct and on duty, in the vicinity of § 87(2)(b), Bronx County, was discourteous, in that he spoke discourteously to § 87(2)(b), without police necessity, by stating in sum and substance, "You want to threaten me? Are you fucking nuts?"

P.G. 203-09, Page 1, Paragraph 2

PUBLIC CONTACT –
GENERAL

6. Police Officer James Stalikas, on or about August 14, 2019, at approximately 0100 hours, while assigned to the 47th Precinct and on duty, in the vicinity of § 87(2)(b) Bronx County, was discourteous, in that he spoke discourteously to § 87(2)(b) § 87(2)(b), without police necessity, by stating in sum and substance, "Fucking watch your mouth."

P.G. 203-09, Page 1, Paragraph 2

PUBLIC CONTACT –
GENERAL

7. Police Officer James Stalikas, on or about August 14, 2019, at approximately 0100 hours, while assigned to the 47th Precinct and on duty, in the vicinity of § 87(2)(b) Bronx County, wrongfully used force, in that he used a chokehold against § 87(2)(b)

P.G. 221-01, Page 3, Prohibition 2
P.G. 221-02, Page 2, Prohibition 11

FORCE GUIDELINES
USE OF FORCE

8. Police Officer James Stalikas, on or about August 14, 2019, at approximately 0100 hours, while assigned to the 47th Precinct and on duty, in the vicinity of § 87(2)(b) Bronx County, wrongfully used force, in that he used physical force against § 87(2)(b) by grasping both his arms at the wrist and pushing them up towards his head, without police necessity.

P.G. 221-01, Page 3, Prohibition 2
P.G. 221-02, Page 2, Prohibition 11

FORCE GUIDELINES
USE OF FORCE

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on August 19, September 1, and September 19, 2022. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The CCRB called § 87(2)(b) as a witness; Respondent called Sergeant Declan Ludington and testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having reviewed all of the evidence in this matter, the Tribunal finds Respondent Guilty of Specifications 1, 3 and 4. I recommend that Respondent forfeit five (5) vacation days for each Specification, to run concurrently with each other.

I find Respondent Not Guilty of Specifications 2, 5, 6, 7 and 8.

ANALYSIS

It is undisputed that at approximately 0100 hours on August 14, 2019, Respondent, along with three other members of the 47th Precinct Public Safety Team, observed § 87(2)(b) ("Complainant") in the vicinity of § 87(2)(b). The Public Safety Team followed Complainant into a convenience store, where they had a confrontation with him regarding credit cards. During the verbal exchange between Complainant and the officers, Respondent allegedly was discourteous before grabbing Complainant in an alleged chokehold. Respondent is then alleged to have repeatedly used force to push Complainant's arms behind him, before releasing him. Complainant was ultimately not arrested by either Respondent or his team and left the store.

Body-Worn Camera Video (CCRB Exs. 1-3)

- 1:03:40-1:12:15 Respondent and other police officers are speaking with Complainant to determine why he ran into a convenience store and tossed credit cards onto the shelves. They stated it was suspicious behavior and determined the cards are not in Complainant's name. For the duration of the interaction, Complainant refuses to cooperate and will not tell the officers who the cards belong to, eventually stating that the cards belong to a family member, an elder, but will not elaborate. He yells the "N" word and claps at the officers. One officer, not Respondent, asks Complainant to keep his hands at his side and to calm down.
- 1:10:12 Respondent takes the credit cards from another officer; there are a total of three cards.
- 1:12:17- 1:12:50 Respondent confronts Complainant after his perceived evasiveness regarding the cards by saying: "I know you are fucking playing stupid," "I know you know about the credit card skimming and all that shit," and "So stop it!" Respondent states that he has known Complainant since he was "a little kid."
- 1:13:58- 1:14:31 Another police officer states that Complainant threw his phone at the officer's face. Complainant then turns to the lieutenant on scene and asks him for his property back, calling him a sergeant. Respondent interjects, "He's not even a sergeant, fucking idiot." Complainant replies, "I'm not talking to you;" Respondent continues, "... just a fool, you sound so stupid. Stop."

- 1:15:05- 1:16:44 Complainant begins walking back and forth in the store aisle. He starts swinging his arms, while yelling profanities. He yells to Respondent, "You're gonna feel so stupid, you fat fuck Teletubby bitch." Complainant then says "Alright, bet. You wanna play with fire, gangsta? I'm telling ya'll you'll get burned, I'm telling ya'll."
- 1:16:49-1:17:06 The other police officer standing with Complainant explains why Complainant was stopped. Complainant then states "I'm telling ya'll from me, I'm from Jamaica, and like ya'll play with fire you get burned." "Ya'll play with fire you get burned." The police officer asks, "Is that a threat, because I can bring it up there too." The Complainant then repeatedly states, "I don't threaten cops."
- 1:17:06- 1:17:43 Respondent moves his fellow police officer off to the side and approaches Complainant, attempting to grab his arms. Complainant asks, "What are you doing," then pulls his arms away. Respondent's open right hand moves up and touches Complainant's left collar bone for approximately one second. Respondent then turns Complainant around to face the shelving and pulls his wrists to the small of Complainant's back. Complainant says, "Whoa, whoa, what is this about," while another police officer helps to hold Complainant's left arm. While holding Complainant's arms against his back, Respondent states, "You want to threaten cops? You need to slow your roll. You're getting way to aggressive." Respondent tells Complainant he needs to stop. Complainant replies, "Yea." Respondent then says, "You wanna threaten me? Are you fucking nuts?"
- 1:17:45-1:18:26 Respondent releases Complainant's wrists; Complainant then turns calmly to the other police officer and asks, "Can I get my cards please?" Respondent continues to warn Complainant he cannot threaten police officers. Complainant says where he comes from, what he said is not a threat. Respondent replies, "You need to fucking watch your mouth."
- 1:19:22-1:20:00 Complainant is handed his items back and clarifies with the police officers that he is no longer being detained. Once they acknowledge that he is free to leave, Complainant spews a continuous string of epithets and insults towards the police officers as he exits the store.

Respondent's Testimony

Respondent testified that he has worked in the 47th Precinct for the majority of his career. He began as a patrol officer and worked his way up to the anti-crime unit of the same precinct. During the early morning hours of August 14, 2019, Respondent was working with three other

plainclothes officers, driving an unmarked car. Respondent testified that he and his team focused on the vicinity of White Plains Road, to address numerous firearm-related crimes in that area (T. 165-68).

Respondent was driving the vehicle on White Plains Road when he and the other police officers observed a male, later identified as Complainant, walking down the street but changing his direction of travel several times. The officers in the car begin surveilling the male and saw him dart into a convenience store. Respondent made a U-turn and stopped the car, allowing his fellow police officers to follow the male into the store, before he joined them. Upon entering the store, Respondent recognized the individual as Complainant, based on previous interactions he has had with him (T. 170-71). Respondent explained that he has played basketball with Complainant, as he has done with the neighborhood kids many times. He described their relationship as one which included joking around and even making fun of each other (T. 180).

Respondent testified that when he entered the store, one of his team members was already speaking with Complainant. Respondent was then informed that Complainant had tossed credit cards and a razor blade onto shelves in the rear of the store. According to Respondent, there were two types of credit card-related crimes being committed at that time in the 47th Precinct: the physical theft of the cards and the duplication of legitimate cards without the knowledge of the card's owner. In the case of the latter, it would be rare to find a complaint for a stolen card in Department databases. Respondent testified that the only means of discovering whether such cards had been used fraudulently, to his knowledge, would be to physically scan the cards, then transmit the scanned images to several different units within the Department, all of which could take hours before receiving a definitive answer (T. 171-73, 178-79).

Respondent testified that upon discovering three cards, none of which bore Complainant's name, they commenced an investigation to determine whether the cards had been stolen. While the members of his team examined the cards, Respondent asked Complainant where he got the cards from. According to Respondent, Complainant said, "My elders" (T. 176-77).

Respondent testified that since no firearm had been recovered, the sole purpose of the investigation was to determine the identities of the owners of the cards. He denied un-holstering his weapon at any point during the interaction with Complainant (T. 202, 205). Respondent testified that, in his view, Complainant's behavior was not "normal." He stated that Complainant throwing cards onto shelves after running into the store drew attention to himself (T. 172, 177, 180-81).

Respondent testified that as the interaction progressed, Complainant became more agitated and irate. Complainant was not handcuffed and stood freely during the investigation. Complainant then began clapping his hands and stepping closer to police officers, while saying "If you want to play with fire, you'll get burned." Respondent testified that he interpreted that statement as a direct threat towards him and his team members (T. 181-82, 197, 224).

Respondent testified that he attempted to grab Complainant's hands to gain control of the situation, but was unable to do so because Complainant tucked them behind his back. Respondent moved his right hand up to Complainant's collarbone to turn him around to gain access to his hands. According to Respondent, Complainant was using force to try and break free as Respondent held his hands. While Respondent had originally intended to handcuff Complainant, he ultimately decided against it. He demonstrated to the Tribunal how he pushed back against Complainant's force in order to maintain a firm grip on Complainant's arms. At no

point did Respondent hear Complainant call out in pain or claim he was having difficulty breathing. Their physical interaction lasted under one minute (T. 182-86, 197, 209).

When Respondent was asked why he used such coarse language, he testified that his purpose is not to be a "robot cop." He stated he was using the same vernacular used by the individuals he comes in contact with while working. He also mentioned that during the interaction with Complainant, Complainant spoke just as bluntly and with as many curses towards the officers, exemplifying their rapport with each other (T. 192).

Sergeant Declan Ludington

Sergeant Ludington was the Anti-Crime sergeant and the supervisor of Respondent's team on August 14, 2019. He testified that as he and his team members were driving on White Plains Road, they observed Complainant walking northbound; according to Ludington, Complainant looked toward their car, then began walking southbound on White Plains Road before changing direction again and stepping inside a convenience store, while holding his waistband. Once Ludington entered the store, he went to the left and the other police officers went to the right, where they encountered Complainant. Ludington then searched the rear of the store where the store manager alleged that Complainant had thrown something when he came inside (T. 116-17).

Sergeant Ludington and his team discovered three credit cards and a razor blade on the store's shelves where the store manager alleged Complainant had thrown them. They then used their Department phones to interrogate Department databases to determine whether anyone had reported the cards as stolen. While they were conducting this investigation, Ludington noticed that Complainant was becoming increasingly agitated, yelling and gesturing with his hands (T. 118-20).

Sergeant Ludington testified that he observed only the end of Respondent's physical encounter with Complainant. However, he reviewed the Body-Worn Camera recording of the incident at a later time. He testified that he believed the Complainant had "tried to step up" to one of his team members, and Respondent "pushed him back." Ludington acknowledged that during the encounter, Respondent did use profanity. Once Complainant appeared to calm down, Ludington offered him medical attention based on his belief that Complainant's behavior during the incident was erratic. Complainant refused medical treatment, denied that he "need[ed] anything" from the police officers and cursed them as he left the store (T. 124-26, 138).

Complainant

Complainant testified¹ that at approximately 0100 hours on August 14, 2019, he was walking home from his girlfriend's house when he noticed officers trailing him. According to Complainant, he told the officers there was no reason for them to be following him as he was not doing anything wrong. Complainant noted there were four officers in the car; he claimed he knew that they were police based upon their arm bands and the long antenna on the rear of the vehicle (T. 39-41).

Complainant explained that he was trying to get somewhere where there were cameras and witnesses so that if anything were to happen, it would be recorded; therefore, he went towards 219th Street. As he continued to walk towards 219th Street, the officers continued to follow him and ask questions regarding his whereabouts and if he committed any crimes. As he continued walking, Complainant testified that he informed the officers what they were doing was unnecessary. Shortly thereafter, he entered a convenience store at 219th Street (T. 41-43).

¹ Complainant was permitted to testify remotely.

Complainant remembered that while in the store, he heard a door slam. As he walked to the front of the store, he recalled seeing officers "rush in the store holding onto their guns." He testified that he became afraid and froze. He then observed the police officers closing the store shutters and doing something with the store security cameras, possibly shutting them off. Complainant witnessed four officers in plainclothes and a lieutenant in uniform enter the store. He claimed that as the officers entered the store, they accused him of possessing a firearm and of committing credit card fraud, both of which he denied (T. 43-45).

Complainant testified that as he was frisked, he had one credit card and his phone removed from his person. He claimed that the credit card had his brother's name on it and that he had permission from his brother to use the card. Despite Complainant's assurances, one of the police officers conducted a search using the name on the card to determine whether it was stolen. Complainant testified that officers accused him of "know[ing] about credit card fraud." Since he knew the pin number to the card, he became frustrated because he wanted to get his things back. Complainant testified further that it felt as though he had been in the store for over an hour and that told the officers they were wasting their time. He described the situation as "just crazy" and wanted his property back so that he could be on his way. Complainant admitted that during the encounter, he stated, "You guys keep playing with me, you playing with fire, you're going to get burned." Complainant told the officer at the time that he was not threatening him, but alluded to the officers losing their jobs if they kept "playing with" him (T. 45-49, 52-53).

Complainant alleged that following his comment about playing with fire, one of the officers [Respondent] choked him, causing pain in his throat as the officer pushed with his index finger and thumb. Complainant indicated he felt the blood go to his head and felt as if he would

fall. He stated the action made him feel "crazy," as if he would have fainted if his neck had been held any longer. After Respondent released his neck, Complainant testified he was turned around and Respondent pushed his arms up his back. Complainant repeated, "All right, you're hurting me now" several times, to no avail, as Respondent continued pushing up his arms (T. 49-50).

On cross-examination, Complainant denied that he tensed his body when Respondent attempted to turn him around. After being confronted with a prior statement in which he asserted that he "probably did" tense his body, he denied making the statement (T. 100). Complainant conceded that during the same statement, he asserted that one of the police officers struck him with a bat (T. 100). Complainant acknowledged that once he was released by the officers and the cards were returned to him, he yelled, "Suck my d—k" as he left the store (T. 102-03).

DISCUSSION

Credibility

I credit Respondent's testimony as forthright, concise, and logical. Even though Respondent is interested in the outcome of this disciplinary hearing, any concern about the effect of this interest on his veracity was alleviated by the corroborative result of the Body-Worn Camera videos and Sergeant Ludington's testimony. Respondent's willingness to admit to using profane and coarse language during the encounter, which runs counter to his interest, further enhanced his credibility.

I also credit Sergeant Ludington's testimony as candid and logical. While Ludington was a member of Respondent's team that day, he is a disinterested witness in this matter whose testimony was consistent with the most compelling independent evidence in the case, the Body-Worn Camera videos. I could not discern any bias in favor of Respondent in Ludington's recounting of the material aspects of the encounter with Complainant.

In contrast, Complainant's account was disjointed, self-serving, and embellished. His assertions that he began a dialogue in the street with the police officers before he entered the store and that the police entered the store, pointing their weapons at him, are illogical and unsupported by the video evidence in the case. His claims that he was struck by a bat and was subjected to force around his throat, which restricted his breathing, are similarly unsupported by any independent evidence. Based upon all the surrounding circumstances, I find Complainant to be an unreliable narrator of the events.

Specifications 1-6: Discourtesy

I find that CCRB has met their burden of proof by a preponderance of the relevant, credible evidence that Respondent was discourteous to Complainant, as charged in Specifications 1, 3 and 4.

I further find that CCRB has failed to meet their burden of proof by a preponderance of the relevant, credible evidence that Respondent was discourteous to Complainant, as charged in Specifications 2, 5 and 6.

Any analysis of whether the language used by a respondent is discourteous must consider the context in which it is used. Among the factors to be considered are whether the allegedly discourteous language includes swear words or words which, under the circumstances presented, can objectively be seen as offensive; whether the words spoken are offensive because of the time and place of their utterance; and the relationship of the parties to the conversation. The Tribunal is well aware that the vernacular of Joe or Jane New Yorker may vary from neighborhood to neighborhood, and from group to group. A word one cohort may deem patently offensive may simply be another cohort's idea of word choice.

In this case, Respondent used the modifier "fucking" in Specification 1 to emphasize that he believed Complainant was not being forthright with him. In Specification 3, he used the same word to emphasize his assertion that Complainant lacked intelligence. In both of these instances, the allegedly offensive language was directed toward, and was about, Complainant.

In Specification 4, Respondent referred to Complainant as a fool and asserted that he sounded stupid.

The three statements discussed above are objectively insulting and advance no police purpose. Respondent is a Member of Service who has voluntarily assumed a higher standard of conduct than others; such language is unprofessional in the context of taking law enforcement action and confronting a suspect, even if it is consistent with the lexicon used by Complainant in Respondent's experience with him.

Specification 2 alleges that Respondent used the word "shit" as a generic term for criminal activity associated with credit card skimming. I find that the use of this word has become so common that, in this context, such language was not discourteous.

Specifications 5 and 6 must be analyzed in a different context, as they concern statements Respondent made while he and Complainant were engaged in an escalating verbal, and eventually physical, confrontation. The evidence demonstrates convincingly that Complainant, in an ill-considered show of bravado, began yelling at police officers, while waving his hands about, moving aggressively toward them, and uttering a veiled threat. Under the circumstances, it was reasonable for Respondent to restrain Complainant while the rest of his team completed their investigation. I find that under the circumstances, using rough language to illustrate to Complainant the folly of escalating a confrontation with several armed police officers excuses its otherwise discourteous effect.

Therefore, I find Respondent Guilty of Specifications 1, 3 and 4; I further find Respondent Not Guilty of Specifications 2, 5 and 6.

Specifications 7: Use of Chokehold

I find that CCRB has failed to meet their burden of proof by a preponderance of the relevant, credible evidence that Respondent used a chokehold.

The Patrol Guide states, "Members of the service **SHALL NOT** ... use a chokehold" (emphasis in original). It defines a chokehold as follows: "A chokehold shall include, but is not limited to, any pressure to the throat or windpipe, which *may* prevent or hinder breathing or reduce intake of air" (emphasis added) (P.G. § 221-01).

Respondent denied using a chokehold against Complainant; CCRB appears to rely on approximately one second in the video (CCRB Ex. 1 at 1:17:08-1:17:09) to support their allegation that he did. To prove that a chokehold was used, CCRB must prove that Respondent applied pressure to Complainant's "throat or windpipe, which may prevent or hinder breathing or reduce air intake" (see P.G. 221-01, Page 2, Definitions [issued June 1, 2016]). The record evidence, including the video, does not establish by a preponderance of the evidence that Respondent applied such pressure to Complainant's "throat or windpipe." I find, instead, that the video corroborates Respondent's testimony that he pushed Complainant's collarbone in order to turn him and hold his hands behind his back.

Accordingly, I find Respondent Not Guilty of Specification 7.

Specification 8: Use of Force

I find that CCRB has failed to meet their burden of proof by a preponderance of the relevant, credible evidence that Respondent wrongfully used force without police necessity.

As discussed above in the analysis of Specifications 5 and 6, Complainant began shouting, waving his hands about and moving towards a group of police officers during an investigation. He stated words to the effect of, "If you play with fire, you get burned." The video evidence shows that Complainant made these movements and statement inside a store, while standing in a narrow aisle, either side of which had cans and bottles containing food items lined up on shelves.

Based upon all of the circumstances, Respondent reasonably sought to restrain Complainant until the police had completed their investigation. As the video evidence shows, when Respondent attempted to secure Complainant's arms so he could be handcuffed, Complainant actively resisted by pulling his arms forward, away from Respondent. Complainant then used active force against Respondent, pushing up with his wrists while Respondent attempted to handcuff him. Once Respondent had both of Complainant's hands under his control, he continued to engage him in conversation to de-escalate the situation, until Complainant changed his aggressive posture. While Respondent ultimately elected not to handcuff Complainant, the force he used to overcome Complainant's resistance was reasonable and lawful under the circumstances.

Based upon the foregoing, I find Respondent Not Guilty of Specification 8.

PENALTY

In order to determine an appropriate penalty, this Tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history was also examined (*see* 38 RCNY § 15-07). The Tribunal considered

information from his personnel record in making this penalty recommendation; this information is contained in an attached memorandum.

Respondent, who was appointed to the Department on July 8, 2015, has no formal disciplinary history. CCRB has recommended a penalty of termination. Because I have found Respondent Not Guilty of Specifications 2, 5, 6, 7 and 8, that recommendation is excessive.

Respondent has been found guilty of three specifications of discourtesy. The presumptive penalty for discourtesy is five penalty days; the mitigated penalty is one day and the aggravated penalty is ten penalty days. CCRB recommended that the aggravated penalty of ten penalty days be imposed for each individual specification of discourtesy Respondent was charged with without offering any evidence of an aggravating circumstance warranting the imposition of such penalty. Accordingly, that recommendation, too, is excessive.

I have considered the entirety of the record and find that the presumptive penalty of five penalty days for each of the three Specifications of which Respondent has been found Guilty is appropriate. Based upon Respondent's testimony, which I credit, I do not find that his use of the offensive language was motivated by animus but a misguided sense of what was acceptable discourse in that scenario. Accordingly, running the penalties consecutively would overstate Respondent's culpability. I, therefore recommend that Respondent forfeit five (5) vacation days for each specification, to run concurrently with each other.

Respectfully submitted,

Paul M. Gamble
Assistant Deputy Commissioner Trials

APPROVED

APR 19 2022
KEECHAIT L. SEWELL
POLICE COMMISSIONER



ERIC L. ADAMS
MAYOR

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ARVA RICE
INTERIM CHAIR

Honorable Keechant L. Sewell
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: Police Officer James Stalikas
Disciplinary Case No. 2021-23487

Commissioner Sewell:

The above-referenced case was tried on August 19, September 1, and September 19, 2022, by the undersigned, for the New York City Civilian Complaint Review Board (hereinafter "CCRB"), and pursuant to the Memorandum of Understanding between CCRB and the New York City Police Department.

Respondent, Police Officer James Stalikas was charged with the following:

1. Police Officer James Stalikas, on or about August 14, 2019, at approximately 0100, while assigned to 047 PCT and on duty, in the vicinity of § 87(2)(b) § 87(2)(b), Bronx County, was discourteous, in that he spoke discourteously to § 87(2)(b) without police necessity, by stating in sum and substance "I know you are fucking playing stupid."

PG 203-09, page 1, paragraph 2 PUBLIC CONTACT – GENERAL

2. Police Officer James Stalikas, on or about August 14, 2019, at approximately 0100, while assigned to 047 PCT and on duty, in the vicinity of § 87(2)(b) § 87(2)(b), Bronx County, was discourteous, in that he spoke discourteously to § 87(2)(b) without police necessity, by stating in sum and substance "I know you know about the credit card skimming and all that shit."

PG 203-09, page 1, paragraph 2 PUBLIC CONTACT – GENERAL

3. Police Officer James Stalikas, on or about August 14, 2019, at approximately 0100, while assigned to 047 PCT and on duty, in the vicinity of § 87(2)(b) § 87(2)(b), Bronx County, was discourteous, in that he spoke discourteously to § 87(2)(b) without police necessity by calling § 87(2)(b) a "fucking idiot." PG 203-09, page 1, paragraph 2 PUBLIC CONTACT – GENERAL

4. Police Officer James Stalikas, on or about August 14, 2019, at approximately 0100, while assigned to 047 PCT and on duty, in the vicinity of § 87(2)(b) § 87(2)(b), Bronx County, was discourteous, in that he spoke discourteously to § 87(2)(b) without police necessity, by stating in sum and substance "He is just a fool. He sounds so stupid."

PG 203-09, page 1, paragraph 2 PUBLIC CONTACT – GENERAL

5. Police Officer James Stalikas, on or about August 14, 2019, at approximately 0100, while assigned to 047 PCT and on duty, in the vicinity of § 87(2)(b) § 87(2)(b), Bronx County, was discourteous, in that he spoke discourteously to § 87(2)(b) without police necessity, by stating in sum and substance, "You want to threaten me? Are you fucking nuts?"

PG 203-09, page 1, paragraph 2 PUBLIC CONTACT – GENERAL

6. Police Officer James Stalikas, on or about August 14, 2019, at approximately 0100, while assigned to 047 PCT and on duty, in the vicinity of § 87(2)(b) § 87(2)(b), Bronx County, was discourteous, in that he spoke discourteously to § 87(2)(b) without police necessity, by stating in sum and substance "Fucking watch your mouth."

PG 203-09, page 1, paragraph 2 PUBLIC CONTACT – GENERAL

7. Police Officer James Stalikas, on or about August 14, 2019, at approximately 0100, while assigned to 047 PCT and on duty, in the vicinity of § 87(2)(b) § 87(2)(b), Bronx County, wrongfully used force, in that he used a chokehold against § 87(2)(b)

PG 221-01, page 3, Prohibition 2 FORCE GUIDELINES

PG 221-02, page 2, Prohibition 11 USE OF FORCE

8. Police Officer James Stalikas, on or about August 14, 2019, at approximately 0100, while assigned to 047 PCT and on duty, in the vicinity of § 87(2)(b) § 87(2)(b), Bronx County, wrongfully used force, in that he used physical force against § 87(2)(b) by grasping both his arms at the wrist and pushing them up towards his head, without police necessity.

PG 221-01, page 3, Prohibition 2 FORCE GUIDELINES

PG 221-02, page 2, Prohibition 11 USE OF FORCE

CCRB has reviewed the October 27, 2022, draft decision of Assistant Deputy Commissioner - Trials Paul M. Gamble (hereinafter, "ADCT"). We respectfully submit the following comments regarding the draft decision pursuant to *Fogel v. Board of Education*, 48 A.D.2d 925 (2d Dept. 1975).

The Court found Respondent Stalikas guilty of Specification One (1) Three (3), and Four (4) and found Respondent not guilty of Specifications Two (2), Five (5), Six (6), Seven (7), and Eight (8). It is respectfully requested that you accept ADCT Gamble's finding for Specifications

One (1), Three (3), and Four (4) and reject ADCT Gamble's findings on Specifications Two (2), Five (5), Six (6), Seven (7), and Eight (8) and further accept CCRB's recommended penalty of Termination.

SUMMARY OF THE RELEVANT EVIDENCE PRESENTED AT TRIAL

§ 87(2)(b) testified that he was walking alone in the vicinity of White Plains Road and East 219th Street in the Bronx, and heading home, when he decided to enter a deli and order some food. § 87(2)(b) did not speak or interact with anyone prior to entering the deli, nor did he recall having any bulges on his person. § 87(2)(b) testified that he observed an unmarked police vehicle, and it began to follow him and one of the officers in the vehicle began to ask him questions. § 87(2)(b) testified that he entered the deli. The deli clerk was the only person inside the deli when § 87(2)(b) entered. Four plainclothes officers identified as Sergeant. Ludington, and Police Officers Stalikas, Barbetto, and Distelhurst entered the deli less than a minute after § 87(2)(b) and ordered § 87(2)(b) to show them his hands. § 87(2)(b) complied, and raised his hands up in the air.

At 03:06, Police Officer Distelhurst's Body-Worn-Camera, CCRB's Exhibit 2 shows Police Officer Distelhurst showing something to Lieutenant. Decaro and telling him that § 87(2)(b) is in possession of a card that has another person's name on it. § 87(2)(b) is heard arguing in the background with Respondent. At 09:03, Respondent says to § 87(2)(b) "§ 87(2)(b) I know you are fucking playing stupid. I know you know about credit card skimming and all that shit, so stop it." At 11:10, § 87(2)(b) addresses the Lieutenant as a Sergeant. At 11:13, Respondent says to § 87(2)(b) "He is not even Sergeant, you fucking idiot." § 87(2)(b) replies that he is not talking to Respondent. At 11:18, Respondent says to § 87(2)(b) "He is just a fool, and sounds so stupid." At 13:40, § 87(2)(b) say to the officers, "I am from Jamaica, and if ya play with fire, ya get burned." § 87(2)(b) testified that he meant that, if the officers continue to harass him that he is going to report them and get them fired, not as a physical threat. Police Officer Distelhurst's BWC, CCRB's Exhibit 2, at 13:00, shows § 87(2)(b) pacing back and forth. At 13:30, § 87(2)(b) repeatedly says to the officers, "I am telling ya, ya play with fire, ya get burned." At 13:37, § 87(2)(b) who is standing approximately two to three feet away from Police Officer Distelhurst, says to Police Officer Distelhurst, "I am from Jamaica, and if ya play with fire, ya get burned." Police Officer Distelhurst in a raised voice tone asks § 87(2)(b) if he just threatened Police Officer Distelhurst. § 87(2)(b) replies that he does not threaten police officers, and that his statement is not a threat. Police Officer Distelhurst replies that § 87(2)(b)'s statement sounds like a threat. Police Officer Distelhurst and § 87(2)(b) argue about whether § 87(2)(b)'s statement is a threat. At 13:54, Respondent, who appears to be behind Police Officer Distelhurst, approaches § 87(2)(b) and grabs § 87(2)(b)'s arms, which are by his side. Respondent pushes § 87(2)(b) on his chest towards the shelves, which is approximately less than a foot away. § 87(2)(b) does not make any movements and is facing Respondent. At 13:56, Respondent grabs the front of § 87(2)(b)'s throat with his open right

hand Respondent thumb to be on § 87(2)(b)'s windpipe, while the rest of his fingers are on § 87(2)(b)'s neck.

At 13:57, Respondent removes his hand from § 87(2)(b)'s throat, turns § 87(2)(b) around so that his back is facing the officers, and grabs both of § 87(2)(b)'s arms. Respondent then pushes § 87(2)(b) on his back towards the shelf. At 14:04, Respondent is holding both of § 87(2)(b)'s arms, which are behind § 87(2)(b)'s back. Respondent asks § 87(2)(b) if he “wants to threaten cops.” § 87(2)(b) replies no. Between 14:16 and 14:30, Respondent, is holding both of § 87(2)(b)'s wrists, pushes § 87(2)(b)'s wrist and arms, which are in a V-shape, upward towards § 87(2)(b)'s mid and upper back and towards his head. At 14:27, Respondent releases his grip of § 87(2)(b).

At 14:25, Respondent says to § 87(2)(b) “You want to threaten me? Are you fucking nuts?” At 15:09, Respondent says to § 87(2)(b) “you need to fucking watch your mouth.

OTHER RELEVANT EVIDENCE

1. CCRB 2-BWC FOOTAGE-ANDREW DISTELHURST-201907212_20191017_1644A_DM (16:50)
2. CCRB 3-BWC- FOOTAGE-PO JAMES STALIKAS-201907212_20191017_1648_DM (1 of 3) (10:05)
3. CCRB 4-BWC- FOOTAGE-PO JAMES STALIKAS-201907212_20191021_0752_DM (2 of 3) (03:37)

RESPONDENT IS GUILTY OF DISCOURTESY, CHARGES AND SPECIFICATIONS 2, 5, AND 6

We strongly disagree with the tribunal’s finding that Respondent used the word “*shit*” as a generic term for criminal activity associated with credit card skimming. (Draft Decision 13). ADCT Gamble writes, “*I find that the used of this word has become so common that in this context, such language was not discourteous.*” (Draft Decision 13). ADCT Gamble further writes, “*I find that under the circumstances, using rough language to illustrate to Complainant the folly of escalating a confrontation with several armed police officers excuses its otherwise discourteous effect.*” (Draft Decision 13). The Patrol Guide plainly states that a member of service must be courteous and respectful. Here, Respondent not only admits that he used foul language towards § 87(2)(b) but it is also captured on his body-worn-camera. There is no excuse for his discourteous words of accusing § 87(2)(b) of knowing about credit card skimming and all that “shit”, stating are you “fucking nuts” or telling him to “fucking” watch his mouth. There was no chaotic situation that the duty of courteous and professional behavior should be overridden by the immediate need to maintain order. Respondent was surrounded by other members-of-service. § 87(2)(b) was the only civilian in the store being detained. None of the profanities hurled at § 87(2)(b) served any legitimate law enforcement purpose, nor were

they used in the context of any lawful commands. In addition, Respondent was the only member-of-service to engage in this untoward behavior. The tribunal chose to ignore the evidence before it.

RESPONDENT IS GUILTY OF THE USE OF A CHOKEHOLD

We disagree with the Tribunal's finding that *"the record of evidence, including the video does not establish by a preponderance of the evidence that Respondent applied such pressured to Complainant's 'throat or windpipe.'" (Draft Decision 14).* It found that *"the video corroborates Respondent's testimony that he pushed Complainant's collarbone in order to turn him and hold his hand behind his bank."* (Draft Decision 14) These findings are specious at best. The Tribunal completely ignores the testimony of the § 87(2)(b) that is corroborated by CCRB's Exhibit 2. The evidence shows by a preponderance that Respondent placed his right hand on the Complainant's throat and neck area and applied pressure. The evidence shows by a preponderance that pressure was applied because CCRB's Exhibit 2 shows § 87(2)(b) is in distress. § 87(2)(b) also testified that *"Respondent choked him and that he felt the pain around his throat."* (Transcript 49). The Complainant further testified that, *"if he would have held my neck for anymore longer, like I could have just fainted."* (Transcript 50) The CCRB's evidence does not depict Respondent pushing against Complainant's collarbone. Respondent fabricated this excuse to avoid being held accountable for his misconduct. The body-worn-camera footage could not be clearer. Certain body parts of the body are off limits, and the throat and neck areas are number one on that list. Upon review, the body-worn-camera footage at 13:57 of CCRB's Exhibit 2, clearly shows the chokehold.

RESPONDENT IS GUILTY OF WRONGFUL USE OF FORCE

We strongly disagree with the Tribunal's findings that Respondent reasonably sought to restrain Complainant until the police had completed their investigation. (Draft Decision 15) ADCT Gamble writes, *"As the video evidence shows, when Respondent attempted to secure Complainant's arms so he could be handcuffed, Complainant actively resisted by pulling his arms forward, away from Respondent. Complainant then used active force against Respondent, pushing up with his wrists while Respondent attempted to handcuff him."* (Draft Decision 15). This is completely inaccurate and mischaracterizes the evidence. § 87(2)(b) did not resist and CCRB's Exhibit 2 corroborates his testimony. § 87(2)(b) testifies, *"he turned me around, put my hands up in my back, as he has his hand on my hands towards my back. He just kept on, like pushing it up. He keeps going up and up and up. I just kept telling him he's hurting me and like he never cared. He just kept doing it."* (Transcript 50). § 87(2)(b) was not resisting. The force that was used during this moment was not reasonable force to gain control of a person who was not engaging in any sort of physical aggression. Respondent intentionally hurt § 87(2)(b) Prior to brutalizing § 87(2)(b) Respondent did not use any de-escalation techniques that are outlined in the Patrol Guide Section 221-01. Respondent was frustrated with § 87(2)(b) and

took his frustrations out on § 87(2)(b). Again, none of the other member-of-service engaged in this abusive behavior towards § 87(2)(b).

We ask you to carefully review the evidence, particularly CCRB's Exhibit 2, as it reveals that Respondent grabbed § 87(2)(b)'s neck with his right hand and squeezed and applied pressure to § 87(2)(b)'s neck. Respondent then turned § 87(2)(b) around and grabbed both his hands and pushed them up towards his head. The evidence strongly supports a finding of guilty on all the charges.

Based on the presented arguments above, you should find Respondent Guilty of Charges and Specifications Two (2), Five (5), Six (6), Seven (7), and Eight (8). It is respectfully requested that the findings in the proposed draft decision with regard to Specifications One (1), Three (3), and Four (4) be approved and a penalty of Termination be imposed.

Claudia Avin

Claudia Avin, Esq.
Prosecutor
NYC Civilian Complaint Review Board
Administrative Prosecution Unit

cc: Michael Martinez, Esq.